IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CIVIL APPELLATE JURISDICTION

WRIT PETITION NO. 14150 OF 2026

Jumma Masjid Trust, Dahanu Gaon through
its Chairman Mustakim Harun Patel ...Petitioner

Vs.

The State of Maharashtra through
Collector and Others ...Respondents

Dr. Uday Warunjikar a/w. Mr. Sumit Kate a/w. Ms. Gargi Warunjikar, for the Petitioner.

Ms. Reena A. Salunkhe, AGP, for the Respondent / State.

Mr. Kiran Bapat, Senior Counsel i/b. Mr. Mahendra V. Shingade a/w. Mr. Prabhat R. Salunkhe and Mr. Jenish Kansara, for Respondent No.2.

MAMTA AMAR KALE
Digitally signed by MAMTA AMAR KALE
Date: 2026.10.23 11:19:08 +0530

CORAM : R. I. CHAGLA AND
FIRDOSH P. POONIWALLA, JJ.

DATED : 22nd OCTOBER, 2026

P.C.:-

1. The parties have arrived at a workable arrangement in the present Writ Petition. Accordingly, the following order is passed by consent of the parties.

ORDER

a) The impugned Notice dated 7th October 2026 issued by

Respondent No.2, under Section 53 of the Maharashtra Town Planning Act, 1966, is recalled by Respondent No.2.

b) A fresh Show Cause Notice shall be issued by Respondent No.2 within a period of one week from today, i.e., on or before 29th October 2026, providing all relevant documents which the fresh Show Cause Notice relies upon, to the Petitioner.

c) The Petitioner shall reply to the Show Cause Notice within a period of two weeks from issuance of Show Cause Notice viz., on or before 16th November 2026.

d) Respondent No.2 shall fix a hearing on 17th November 2026, at 11:00 a.m., wherein the Petitioner shall remain present along with any documents which the Petitioner intends to rely upon.

e) Respondent No.2 shall pass a reasoned speaking Order after hearing the Petitioner on or before 25th November 2026 and it shall be served on the Petitioner within a period of one week from the date of passing of the Order.

f) In the event the decision of Respondent No.2 is adverse to the Petitioner, liberty is granted to the Petitioner to adopt appropriate proceedings, and for which the decision shall be not acted upon for a period of one week from service on the Petitioner.

g) The rights and contentions of the parties are expressly kept open.

2. The Writ Petition is disposed of in the above terms. There shall be no order as to costs.

[FIRDOSH P. POONIWALLA, J.] [R.I. CHAGLA, J.]